

Maharashtra Forest Produce (Regulation of Trade) Act, 1969

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State of Maharashtra - Act

Maharashtra Forest Produce (Regulation of Trade) Act, 1969

MAHARASHTRA

India

Maharashtra Forest Produce (Regulation of Trade) Act, 1969

Act 57 of 1969

Published on 24 December 1969

Commenced on 24 December 1969

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Maharashtra Forest Produce (Regulation of Trade) Act, 1969

Maharashtra Act

No. 57 of 1969

MH80

For Statement of Objects and Reasons, see Maharashtra Government Gazette, 1969, Part V, Extraordinary page 557.

(This Act received the assent of the President, on the 24th December 1969; assent was first published in the "Maharashtra Government Gazette", Extraordinary, on the 26th December 1969;)

An Act make provision for regulation in the public interest the trade of certain [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 8.]

forest produce by creation of a State monopoly in such trade in the State of Maharashtra.

Whereas, it is expedient to provide for regulating in the public interest the trade of certain [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 9.]

forest produce by creation of a State monopoly in such trade in the State of Maharashtra; and for matters connected therewith; it is hereby enacted in the Twentieth Year of the Republic of India as follows:

1.

Short title, extent, commencement and application.

(1)

This Act may be called the Maharashtra [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 10.]

Forest Produce (Regulation of Trade) Act, 1969.

(2)

It extends to the whole of the State of Maharashtra.

(3)

It shall come into force in such area or areas, and on such [dates]

[27th day of December 1969, in the whole of the State of Maharashtra (vide G.N. R. and F.D. No. MFP. 2169/221968-U, dated 27th December, 1969.)

or dates as the State Government may, by notification in the Official Gazette, specify.

(4)

It shall apply in respect of the [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce specified in the Schedule.

2.

Definitions.

- In this Act, unless the context otherwise requires :

(a)

"agent" means an agent appointed under section 4;

(b)

"Code" means the Maharashtra Land Revenue Code, 1966;

(c)

"Committee" means an Advisory Committee constituted under sub-section (1) of section 6;

(d)

"grower of [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce" means

(i)

in respect of [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce grown in areas as may, from time to time, be constituted, as reserved or protected forests under the Indian Forest Act, 1927, the State Government; and

(ii)

in respect of [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce grown in areas not covered by sub-clause (i)

(a)

the State Government, where the '[.4] forest produce is grown on unoccupied land as defined in clause (41) of section 2 of the Code;

(b)

the occupant or a tenant or a Government lessee of the holding or a superior holder, as the case may be, in a unit on which the [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce grows and includes every person who, from time to time, claims title to such produce through him;

(e)

["Forest Produce" means such forest produce as defined under the Indian Forest Act, 1927 as are specified in the Schedule appended to this Act, and the State Government may, from time to time, by notification in the Official Gazette, add to or modify the Schedule in the public interest, and the provisions of sub-section (3) of section 19 in so far as they relate to laying before and modification. as they apply in relation to any rule made under that section shall apply in relation to such notification;]

[Clause (e) was substituted by Maharashtra 45 of 1997, section 12.]

(f)
"specified area" means the area specified in the notification under sub-section (3) of section 1;

(g)
"tenant" includes

(i)
a tenant as defined in sub-section (40) of section 2 of the Code, and

(ii)
a tenant as defined in-

(a)
the Bombay Tenancy and Agricultural Lands Act, 1948, in relation to the Bombay area of the State of Maharashtra;

(b)
the Hyderabad Tenancy and Agricultural Lands Act, 1950, in relation to the Hyderabad area of the State of Maharashtra;

(c)
the Bombay Tenancy and Agricultural Lands (Vidarbha Region) (Act, 1958, in relation to the Vidarbha region of the State of Maharashtra;

(h)
"unit " means a sub-division of a specified area constituted into a unit under section 3;

(i)
words and expressions "Government lessee", "holding", "occupant" and "superior holder" shall have the meanings, respectively, assigned to them in the Code;

(j)
words and expressions used but not defined in this Act, and defined in the Indian forest Act, 1927, shall have the meanings, respectively, assigned to them in that Act.

3.
Constitution of units.

- The State Government may divide every specified area into such number of units as it may deem fit in respect of each
[*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]
forest produce.

4.
Appointment of agents.

(1)
The State Government may, for the purpose of purchase of, and trade in any [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]
forest produce on its behalf, appoint agents in respect of different units, and any such agent may be appointed in respect of more than one unit.

(2)
The terms, conditions and the procedure for appointment of agents shall be such as may be prescribed.

5.
Restriction on purchase or transport of [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]
forest produce.

(1)
On the issue of a notification under sub-section (3) of section 1 in any area, no person other than,-

(a)

the State Government;

(b)

an officer of the State Government authorised in writing in that behalf; or

(c)

an agent in respect of the unit in which the [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce has grown; shall purchase or transport the [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce to which this Act applies.

Explanation I.- Purchase of [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce from the State Government, or the aforesaid Government Officer, or agent, shall not be deemed to be a purchase in contravention of the provisions of this Act.

Explanation II.- A person having no interest in the holding who has acquired the right to collect any [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce grown on such holding shall be deemed to have purchased such produce in contravention of the provisions of this Act.

(2)

Notwithstanding anything contained in sub-section (1),

(a)

a grower of any [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce may transport such produce belonging to him from any place within the unit wherein such produce has grown, to any other place in that unit; and

(b)

[*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce purchased from the State Government or any officer or agent specified in the said sub-section by any person for manufacture of finished goods using such produce within the State or by any person for sale outside the State may be transported by such person outside the unit in accordance with the terms and conditions of a permit, to be issued in that behalf by such authority and in such manner as may be prescribed.

(3)

Any person desiring to sell [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce may sell it to the aforesaid Government Officer or agent at any depot situated within the said unit.

6.

Constitution of Advisory Committee.

(1)

The State Government shall, for each year commencing on the 1st day of July and ending on the 30th day of June next following, constitute, in respect of each [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce, an Advisory Committee for one or more Revenue Commissioners' divisions in the State consisting of not more than nine members as may be notified by the State Government from time to time for the purpose of advising the State Government in the matter of fixation, from time to time, of a fair and reasonable price at which such produce may be purchased by the State Government or its authorised officer or agent, as is offered for sale in such division or divisions in accordance with the provisions of this Act:

Provided that, two of the members shall be from amongst the traders of the respective [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce, or manufacturers of finished goods using such produce; and four members shall be from amongst the growers of the respective [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce other than the State Government.

(2)

It shall also be the duty of the Committee to advise the State Government on such other matters as may be referred to it by the State Government.

(3)

The business of the Committee shall be conducted in such manner as may be prescribed.

(4)

The members of the Committee shall be entitled to such allowances as may be prescribed:

Provided, that a member of the State Legislature, while holding the office of member of the Committee shall not be entitled to receive any allowances other than travelling allowance, daily allowance or such other allowance which is paid to the holder of such office for the purpose of meeting the personal expenditure incurred in attending the meeting of the Committee or in performing any other functions as holder of such office.

(5)

The Committee shall tender its advice to the State Government within such period as the State Government may, for each Committee, specify in this behalf.

7.

State Government to fix price in consultation with Committee.

- The State Government shall, after consultation with the Committee, constituted under section 6 in respect of any particular [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce, fix the price at which such produce shall be purchased by it or by any of its authorised officer or agent, from growers of that produce and shall publish the same in the Official Gazette and in such other manner as may be prescribed not later than the 31st day of December; and the price so fixed shall not be altered during the year to which the price relates:

Provided that, if the Committee fails to tender advice within the period specified under sub-section (5) of section 6 (or such further period not exceeding fifteen days as the State Government may allow), the State Government may proceed to fix the price without consultation with the Committee:

Provided further that, different prices may be fixed for different units, and in so doing regard shall be had amongst other things, to-

(a)

prices of the respective [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce obtained or fixed under this Act or any enactment during the preceding three years in respect of the area comprised in the unit;

(b)

the quality of the [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce grown in the unit;

(c)

transport facilities available in the unit;

(d)

the cost of transport; and

(e)

the general level of wages for unskilled labour prevalent in the unit.

8.

Opening of depots and publication of Price list, etc., at depot.

- There shall be set up in each unit such number of depots, and at such places as the State Government may, taking into consideration the convenience of the growers of the respective [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce direct; and a price list of such produce fixed by the State Government under section 7 and the hours of business shall be prominently displayed on a notice board kept for the purpose at every such depot.

9.

State Government or agent to purchase [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce.

(1)

The State Government or its authorised officer or agent shall be bound to purchase at the price fixed under section 7 [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce offered for sale at the depot during the hours of business:

Provided that, it shall be open to the State Government or the authorised officer or the agent to refuse to purchase any

[*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce which in their opinion is not fit for the purpose of manufacture of finished goods using such produce, or for any other commercial purpose.

(2)

Any person aggrieved by the refusal to purchase [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce by an authorised officer or agent under the proviso to sub-section (1), within fifteen days therefrom, refer the matter to the Divisional Forest Officer, or such other officer who may be empowered by the State Government in this behalf, having jurisdiction over the unit in which the V] forest produce has grown.

(3)

On receipt of a complaint under sub-section (2), the Divisional Forest Officer or such other officer, as the case may be, shall hold an enquiry on the spot or at the headquarters, in the prescribed manner; and after hearing the parties concerned or their authorised agent shall pass such orders as he may deem fit; and in case he finds the refusal to purchase the [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce to be improper, he may,

(a)

if he considers the [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce in question still suitable for the manufacture of finished goods, or for any other commercial purpose direct the authorised officer or agent, as the case may be, to purchase the same, and may also award to the person aggrieved such further compensation not exceeding twenty per centum of the price of the [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce payable to him, as he may deem fit;

(b)

if he considers that the [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce in question has since become unsuitable for manufacture of finished goods or for any other commercial purpose- direct the payment to the person aggrieved of any amount not less than the produce, of such [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce payable to him under sub-section (1) and such further compensation not exceeding twenty per centum of such price as he may deem fit by way of damages for the loss suffered by such person.

(4)

Nothing in this section shall be construed as to debar the appropriation of any [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce offered for sale, if the State Government or its authorised officer or the agent has reason to believe that such produce appertains to forest or lands belonging to the State Government and paying only such collection charges, if any, as the State Government may from time to time determine:

Provided that, in the case of any dispute, the Divisional Forest Officer or such other officer who may be specifically empowered in this behalf as specified in sub-section (2), shall hear and dispose of the same in the manner provided therein.

(5)

Any person aggrieved by the decision of any officer referred to in proviso sub-section (4) may, within a period of thirty days from the date of receipt of such decision prefer an appeal to the State Government; and the decision of the State Government of such appeal shall be final.

10.

Registration.

- Every grower of [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce other than the State Government shall if the quantity of such produce grown by him during a year is likely to exceed such quantity as may be prescribed, get himself registered in the prescribed manner.

11.

Registration of manufacturers of finished goods using [*]

[The word 'minor' was deleted by Maharashtra 45 of 1997, Section 11.]

forest produce and exporters of [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce.

(1)

Every manufacturer of finished goods using [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce, and every Exporter of [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce shall get himself, registered within such period, on payment of such fee, and in such manner as may be prescribed.

(2)

Every such manufacturer and exporter registered under sub-section (1) shall furnish a declaration in such form, by such date and in such manner, as may be prescribed.

12.

Disposal of [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce.

- Any [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce purchased by the State Government or by its officer or agent. Under this Act, shall be sold or otherwise disposed of in such manner as the State Government may direct.

13.

Delegation of powers.

- The State Government may by order, in the Official Gazette delegate any of its powers or functions under this Act or the rules made thereunder to any officer or authority not below the rank of an Assistant Conservator of Forests who shall exercise or perform the same subject to such conditions and restrictions as the State Government may specify in the order.

14.

Power of entry, search seizure, etc.

(1)

Any police officer not below the rank of Sub-Inspector or any other person authorised by the State Government may, with a view to securing compliance with the provisions of this Act or the rules made thereunder or to satisfying himself that the said provisions have been complied with -

(i)

stop and search any person, boat, vehicle or receptacle used or intended to be used for the transport of a [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce;

(ii)

enter and search any place;

(iii)

seize [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce in respect of which he suspects that any provision of this Act; or the rules made thereunder has been, is being or is about to be contravened along with the receptacle containing such produce or the vehicles or boats used in carrying such produce.

(2)

The provisions of sections 102 and 103 of the [Code of Criminal Procedure, 1898,]

[Noe see the Code of Criminal Procedure, 1973 (2 of 1974).]

relating to search and seizure shall, so far as may be, apply to searches and seizures under this section.

15.

Penalty.

- If any person contravenes any of the provisions of this Act or the rules made thereunder :-

(a)

he shall be punished with imprisonment which may extend to one year Or with fine which may extend to one thousand rupees, or with both;

(b)

the [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce in respect of which such contravention has been made or such part thereof as the Court may deem fit shall be forfeited to the State Government:

Provided that, if the Court is of the opinion that it is not necessary to direct forfeiture in respect of the whole, or the case may be, any part of the [*]

[The word minor was deleted by Maharashtra 45 of 1997, section 11.]

forest produce, it may, for reasons to be recorded, refrain from doing so.

16.

Attempts and abetment.

- Any person who attempts to contravene or abets the contravention of any provision of this Act or the rules made thereunder shall be deemed to have contravened such provisions.

17.

Cognizance of offences.

- No Court shall take cognizance of any offence punishable under this Act except on a report in writing of the facts constituting such offence made by any Forest Officer not below the rank of a Divisional Forest Officer or by any other officer as may be authorised by the State Government in this behalf.

18.

Savings in respect of acts done in good faith.

(1)

No suit, prosecution or other legal proceedings shall lie against any person for anything which is in good faith done or intend to be so done in pursuance of this Act or the rules made thereunder.

(2)

No suit or other legal proceedings shall lie against the State Government for any damage caused or likely to be caused or any injury suffered or likely to be suffered by virtue of the provisions of this Act, or by anything which is in good faith done or intended to be so done in pursuance of this Act, or the rules made thereunder.

19.

Power to make rules.

- [(1) The State Government may make, subject to the condition of previous publication, rules to carry out all or any of the provisions of this Act.

(2)

In particular and without prejudice to the generality of the foregoing provisions such rules may provide for all or any of the following matters, namely :-

- (a)
procedure to be followed in making appointment of agents;
- (b)
publication of the price lists of [*]
[The word minor was deleted by Maharashtra 45 of 1997, section 11.]
forest produce;
- (c)
manner of holding enquiries under this Act;
- (d)
the authority by whom, the manner in which and the conditions subject to which, permits may be issued;
- (e)
the manner of registration under section 10;
- (f)
- (i)
manner of registration, the period within which such registration shall be made and fee payable therefore, under sub-section (1) of section 11;
- (ii)
form of declaration, authority to whom, date by which and the manner in which, the declaration shall be furnished under sub-section (2) of section 11;
- (g)
any other matter which is either expressly or impliedly required to be prescribed under this Act.

(3)
Every rule made under this section shall be laid, as soon as may be, after it is made, before each House of the State Legislature while it is in session for a total period of thirty days which may be comprised in one session or in two successive sessions, and if, before the expiry of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, and notify such decision in the Official Gazette, the rule shall, from the date of publication of such notification, have effect only in such modified form or be of no effect, as the case may be; so however that any such modification or annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that rule.

20.

Act XVI of 1927 not to apply to [*]

[The word 'minor' was deleted by Maharashtra 45 of 1997, section 11.]

forest produce for purposes covered under this Act.

- Nothing contained in the Indian Forest Act, 1927, shall apply to V] forest produce in respect of matters for which provisions are contained in this Act.

21.

Removal of difficulties.

- If any difficulty arises in giving effect to the provisions of this Act the State Government it may, by order, do anything not inconsistent with such provisions, which appears to it to be necessary or expedient for the purpose of removing the difficulty.

22.

Repeal and saving.

(1)
The Maharashtra Minor Forest Produce (Regulation of Trade) Ordinance, 1969, is hereby repealed.

(2)
Anything done or any action taken by or under the Ordinance so repealed, shall be deemed to have been done or taken under this Act as if this Act had come into force on the 22nd day of October 1969.

Schedule

[See section 2(e)]

1. Temburni (or tendu) leaves.
2. [Apta (Bauhinia recemesa) leaves.]

[Added by G.N. R. & F.D. No. MFP. 1569/216012-(A)-(U), dated 24-6-1971.]

Notifications

G.N., R. & F.D., No. MFP. 2169/221968-U, dated 27th December, 1969 (M.G., 1970, Part IV-B, Pages 296) - In exercise of the powers conferred by sub-section (3) of section 1 of the Maharashtra Minor Forest Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969), the Government of Maharashtra hereby specifies the 27th day of December 1969 to be the date on which the said Act shall come into force in the whole of the State of Maharashtra.

G.N., R. & F.D., No. MFP. 1569/216012-(A)-U, dated 24th June, 1971 (M.G., Part IV-B, Pages 882) - Whereas it is necessary in the public interest to regulate the trading in Apta (Bauhinia recemosa) leaves.

Now, therefore, in exercise of the powers conferred by clause (e) of section 2 of the Maharashtra Minor Forest Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969), the Government of Maharashtra hereby amends the Schedule to the said Act, as follows, namely : -

In the said Schedule, after entry 1, the following new entry shall be added, namely :-

2. "Apta (Bauhinia recemosa) leaves."

G.N., R. & F.D., No. MFP. 1571/71647-U, dated 16th July, 1971 (M.G., Part IV-B, Pages 1092) - In exercise of the powers conferred by section 3 of the Maharashtra Minor Forest Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969), and of all other powers enabling it in that behalf and in supersession of Government Notification, Revenue and Forest Department, No. MFP. 1571/71647-U, dated the 16th July, 1971, the Government of Maharashtra hereby with effect from the 1st day of January, 1984, divides the area specified in Government Notification, Revenue and Forests Department, No. MFP. 2169/221968-U, dated the 27th December, 1969, into units as shown in Schedule hereto, for the purpose of regulation of trade in Apta leaves (Bauhinia racemosa).

G. N. R. & F. D No. MFP. 2193/CR-197/F-1, dated 8th October, 1.993 (M.G., Part IV-B, Pages 1170) - In exercise of the powers conferred by sub-sections (1), (2) and (5) of the section 6 of the Maharashtra Minor Forest Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969) the Government of Maharashtra hereby, for the year commencing on the 1st day of July, 1993 and ending the 30th June, 1994 constitutes in respect of Apta (Bauhinia recemosa) leaves an Advisory Committee, for all Divisions of the Revenue Commissioners in the State, consisting of the members specified in the schedule hereto, for the purpose of advising the State Government in the matter of -

(i)

fixation of fair and reasonable price at which the Apta (Bauhinia recemosa) leaves may be purchased by the State Government or its authorised officer or agent and,

(ii)

fixation of charges of collection of the aforesaid leaves from Government lands.

Schedule 1

A. Representatives of Government -

1

Divisional Commissioner, Bombay Division, Bombay
Chairman

2

Chief Conservator of Forests, Evaluation and Nationalisation,
Maharashtra State, Nagpur.

Member.

B. Representatives of Adiwasi Labourers -

1

Bhau Janu Patil, Alman, taluka Wada, district Thane.
Member.

C. Representatives of Growers -

1

Shri Shankar Rama Paradhi, R/o Jashira, taluka Mokhada,
district Thane
Member.

2

Shri Baburao Balaji Doorgude. R/o Khodala, taluka Mokhada,

district Thane.

Member.

3

Shri Madhukar Dharma Ghatal, R/o Khodala, taluka Mokhada,
district Thane.

Member.

4

Shri Shankar Ladku Kale, R/o. Sapane, taluka Wada, district
Thane.

Member.

D. Representatives of Manufacturers/Exporters -

1

Shri R. F. Patel, Near State Bank, Post Khed, district
Ratnagiri.

Member.

2

Shri F. K. Huddha, Manor Road, Post Palghar, district Thane
Member.

The Conservator of Forests, Thane Circle, Thane will be the Member Secretary of this Committee.

The Committee shall tender its advice to the State Government on or before the 15th November 1993.

G. N. R & F. D. No. MFP. 2193/CR-192/F-1, dated 8th October, 1993 (M. G., Part IV-B, Pages 1171) - In exercise of the Powers conferred by the sub-sections (1) (2) and (5) of the section 6 of the Maharashtra Minor Forest Produce (Regulation of Trade) Act, 1969, the Government of Maharashtra hereby constitutes the Advisory Committee, in respect of Temburni/ Tendu (*Diospyros melanoxylon*) leaves to advise the State Government in the matter of -

(i)

fixation of a fair and reasonable price at which these leaves may be purchased from private lands by the State Government or by its authorised officer or by the Agent appointed for the purpose, and

(iii)

fixation of charges for collection of these leaves from Government lands, for the year commencing on the 1st day of July, 1993 and ending on the 30th day of June, 1994 as follows

(1)

Advisory Committee for All Revenue Divisions

A. Representatives of Government-

(i)

The Commissioner, Nagpur Division, Nagpur
Chairman.

(ii)

Chief Conservator of Forests, Evaluation &
Nationalisation, Maharashtra State, Nagpur,
Member.

B. Representatives of Adivasi Labour-

(1)

Shri Joga Madavi Nagepalli, taluka Aheri, district Gadchiroli
Member

C. Representatives of Growers-

(1)

Shri Shaikh Haidar Ghodusab, Residence of Bhendegaon Khurd,
Post Bhendegaon, taluka Mukhed, district Nanded.

Member.

(2)

Shri P. D. Rahangadale, R/o. Karangitola, taluka Amgaon,

district Bhandara.

Member.

(3)

Shri Vijaykumar Jamnadas Wadera, R/o Vithal Nagar, Gondia,
district Bhandara.

Member.

(4)

Shri Gurunath Babu Agrwale, Shirgaon, taluka Bhiwandi,
district Thane.

Member,

D. Representatives of Manufacturers/Traders

(1)

Shri Manohar Balaji Savkar, Tendu Leaves Merchant Near Jetpura
gate, Hospital Ward, Chandrapur.

Member.

(2)

Shri Gangaram Sugnamal Asnani, Tendu Leaves Merchant, Near
Sindu Bidi Works, Post Badnera, Dist. Amravati.

Member.

The Conservator of Forests, Nagpur Circle, Nagpur will act as a Secretary for the Committee.

The Advisory Committee shall tender its advice to the State Government on or before 15th November, 1993.

G. N. R. & F. D. No. MFP-2192/CR-101/F-1, dated 17th October, 1992 (M. G. Part IV. B, Pages 359) - In exercise of powers conferred by the sub-sections (1), (2) and (5) of the section 6 of the Maharashtra Minor Forest Produce (Regulation of Trade) Act, 1969; the Government of Maharashtra (hereby constitutes the Advisory Committee, in respect of Temburni/ Tendu (*Diospyros melanoxylon*) leaves to advise the State Government in the matter of,-

(i)

Fixation of a fair and reasonable price at which these leaves may be purchased from private lands by the State Government or by its authorised officer or by the agent appointed for the purpose, and

(ii)

Fixation of charges for collection of these leaves from Government lands, for the year commencing on the 1st day of July, 1992 and ending on the 30th day of June, 1993 as follows :

(1)

Advisory Committee for all Revenue Divisions.

I. Representatives of Government

1

The Commissioner, Nagpur Division, Nagpur
Chairman.

2

Chief Conservator of Forests, Evaluation &
Nationalisation, Maharashtra State, Nagpur.

Member.

II. Representatives of Adivasi Labour

1

Prakash Shamraoji Sahare R/o Wanarehuwa, Post Mangrul,
District Wardha.

Member

III. Representatives of Growers

1

Shri P. D. Rahangdale, R/o. Karangitola, Post Anjora, Taluka
Amgaon, District Bhandara.

Member.

2

Shri Joga Goha Madavi, R/o. Pannemara, Post Murumgaon Taluka
Dhanora, District Gadchiroli.

Member.

3

Shri Lagga Pocham Lingaiya, R/o. Pentipaka, Post Bamni, Taluka
Sironcha, District Gadchiroli,

Member.

4

Shri Shankar Lakadu Kale, R/o Sapane Budruk, Post Varala,
Taluka Wada, District Thane.

Member

IV Representatives of Manufacturers/Traders.

1

Shri Vijaykumar Jamnadas Vadera, R/o Vithal Nagar, Gondia,
District Bhandara.

Member

2

Shri Pandurang Lahu Varkute, R/o Musai Poshinva Taluka
Shahpur, District Thane.

Member

The Conservator of Forests, Nagpur Circle, Nagpur will act as Secretary for the Committee.

The Advisory Committee shall tender its advice to the State Government on or before 20th November 1992.

G.N.R. & F.D, No. MFP.2192/CR.104/F.1, dated 19th October, 1992 (M.G., Part IV-B, Pages 363) - In exercise of the powers conferred by sub-sections (1), (2) and (5) of section 6 of the Maharashtra Minor Forest Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969), the Government of Maharashtra hereby, for the year commencing on the 1st day of July 1992 and ending the 30th June 1993 constitutes in respect of Apta (Bauhinia recemosa) leaves, an Advisory Committee, for all Division of the Revenue Commissioners in the State, consisting of the members specified in the schedule hereto, for the purpose of advising the State Government in the matter of-

(1)

fixation of a fair and reasonable price at which the Apta (Bauhinia recemosa) leaves may be purchased by the State Government or its authorised officer or agent and;

(2)

fixation of charges of collection of the aforesaid leaves from Government lands.

I

A. Representatives of Government

Divisional Commissioner, Bombay Division, Bombay

Chairman

Chief Conservator of Forests, Evaluation and Nationalisation,
Maharashtra State, Nagpur.

Member

B. Representatives of Adivasi Labourers

Shri Laxman Ladku Gite, Resident of Chimbipada, Post Bhiwandi,
Taluka Bhiwandi, District Thane.

Member

C. Representatives of Growers

Shri Damodhar Jayaram Gawad, Resident of Agarwadi, Post &
Taluka Palghar, District Thane.

Member

Shri Jayadeo Rama Raut, Resident of Parnala Pachmarg, Dahisar
via Tarapur, District Thane.

Member

Shri Shankar Rama Paradhi, Post Nabesa, Taluka Morwada,
District Thane.

Member

Shri Bapurao Walugi Ergude, Resident of Post Khodala, Taluka
Morwada, District Thane.

Member

D. Representatives of Manufacturers/Exporters

Shri F. K. Hudha, Manor Road, Post, Taluka Palghar, District
Thane

Member

Shri R. F. Patel, Near State Bank, Post, Taluka Khed, District
Ratnagiri.

Member

The Conservator of Forests, Thane Circle, Thane will be the Member Secretary of this Committee.

The Committee shall tender its advice to the State Government on or before the 20th November 1992.

G.N.R. & F. D., No. MFP.21-03/CR.177/F.1. Dated 16th October, 2003 (M.G., Part IV-B, pages 1119) - In exercise of the powers conferred by sub-sections (1), (2) and (5) of the section 6 of the Maharashtra Forests Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969) the Government of Maharashtra hereby for the year commencing on the 1st day of July 2003 and ending the 30th June, 2004 constitutes in respect of Apta (Bauhinia recemosa) leaves, an Advisory Committee, for all Revenue Divisions in the State, consisting of the members specified in the Schedule hereto, for the purpose of advising the State Government in the matter of-

(i)

Fixation of a fair and reasonable price at which the Apta (Bauhinia recemosa) leaves may be purchased by the State Government or its authorised officers or agent,

(ii)

Fixation of charges of collection of the aforesaid leaves from Government lands, and

(A) Representatives of the Government

(1)

Divisional Commissioner, Nagpur
Chairman.

(2)

Chief Conservator of Forests (Evaluation and Nationalisation)
Maharashtra State, Nagpur

Member

(B) Representatives of Adivasi Labourers

(3)

She Vasudev Mondi Gaddam, R/o, Chipurduvva, Taluka Sironcha,
District Gadchiroli.

Member.

(4)

Shri Sadananda Kashinath Khairade R/o. Mohale, Taluka Palghar,
District Thane.

Member.

(C) Representatives of Growers

(5)

Shri Madhukar Dharma Ghatal, R/o Adoshi, Taluka Morwada,
District Thane.

Member.

(D) Representatives of Manufacturers and Exporters

(6)

Shri Ramanlal Phulabhai Patel at and Post Khed, Taluka Khed,
District Ratnagiri.

Member

The Conservator of Forests, Thane Circle, Thane will be the Member-Secretary of this Committee.

The Committee shall tender its advice to the Government on or before 15th November, 2003.

G.N.R. & F.D., No. MFP.21-03/CR.162/F.1, dated 16th October, 2003 (M. G., Part IV-B, Pages 1121) - In exercise of the powers conferred by sub-sections (1), (2) and (5) of the section 6 of the Maharashtra Forests Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969) the Government of Maharashtra hereby constitutes the Advisory Committee in respect of Tembhurni/ Tendu (*Diospyros melanoxylon*) for the year commencing on the 1st day of July 2003 and ending the 30th June, 2004 for the purpose of advising the State Government in the matter of,-

(iii)

Fixation of a fair and reasonable price at which the Temburni/Tendu (*Diospyros melanoxylon*)leaves may be purchased by the State Government or its authorised officers or agent appointed for the purpose, and

(iv)

Fixation of charges of collection of the aforesaid leaves from Government lands.

The constitution of the said Advisory Committee shall remain as follows:-

(A) Representatives of the Government

(1)

Divisional Commissioner, Nagpur

Chairman.

(2)

Chief Conservator of Forests (Evaluation and Nationalisation)

Maharashtra State, Nagpur

Member

(B) Representatives of Adivasi Labourers

(3)

Shri Vasudev Mondhi Gaddam, R/o, Chipurduvva, Taluka Sironcha,
District Gadchiroli.

Member.

(C) Representatives of Growers

(4)

Shri Pocham Chinna Mulla Veladi, R/o. Sirkonda, Taluka
Sironcha, Distect Gadchiroli.

Member.

(5)

Shri Khushal Kishtyaji Pandhram, R/o. Bamni, Taluka Sironcha,
District Gadchiroli.

Member

(6)

Shri Shivram Pocham Yerra, R/o. Tamdala, Taluka Sironcha,
District Gadchiroli.

Member

(7)

Shri Madhukar Dharma Ghatal R/o. Adonshi, Taluka Sironcha,
District Thane.

Member

(D) Representatives of Manufacturers and Exporters

(8)

Shri Vijaykumar Lakshman Bhakkad, R/o. Bhakkad Niwas, Swami
Dayanand Road, District Jalna.

Member

(9)

Shri Hasmukhbhai Dahyabhai Patel, R/o. Near Lakshmi Ice
Factory, B/3, Kanhar Toli, District Gondia.

Member

The Chief Conservator of Forests, Nagpur Circle, Nagpur, will be the Member-Secretary of this Committee.

The Committee shall tender its advice to the Government on or before 20th November 2003.

[G. N. R. & F. D. No. MFP 2193/ CR-192/F-1, dated 14th December, 1993 (M.G., Part IV-B, Page 110)] - In exercise of the Powers conferred by Section 7 of the Maharashtra Minor Forest Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969), Government of Maharashtra in consultation with the Advisory Committee constituted under Government Notification, Revenue and Forests Department No. MFP-2193/CR-192/F-1, dated the 8th October, 1993, for this purpose, hereby fixes per standard bag of tendu (*Diospyros melanoxylon*) leaves (1000 bundles of 70 leaves each) as set out in Column 3 of the Schedule hereto, the prices at which the Tendu leaves shall be purchased by the State Government or by any of its authorised Officer of Agent, during the year commencing on the first day of July 1993 and ending on the 30th June, 1994 from the growers of these leaves in the Units, specified respectively in Column (2) thereof, against the above price (with reference to the Units constituted under Government Notification, Revenue and Forests Department, No. MFP 2182/240911/F-1, dated the 19th November, 1983.

Schedule 4

Serial No.

Units of Forest Circle

Price per standard Bag of Tendu

Leaves

(1)

(2)

(3)

1

All Units of North Chandrapur and South Chandrapur Circle.

470

2

All Units in Bhandara District of Nagpur Circle.

460

3

All Units of Yeotmal and Amravati Circle, Units of Nagpur
Circle excepting these in Bhandara district and all units of
Nanded Forest Division of Aurangabad Circle.

350

4

All Units of Thane, Nashik, Pune, Dhule and Kolhapur Circle
and Units of Aurangabad Circle excepting those in Nanded Forest
Division.

290

[G. N. R. & F. D. No. MFP 2195/ CR-220/F-1, dated 30th December, 1995 (M.G., Part IV-B, Page 519)] - In exercise of the Powers conferred by Section 7 of the Maharashtra Minor Forest Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969), Government of Maharashtra in consultation with the Advisory Committee constituted under Government Notification, Revenue and Forests Department No. MFP-2195/CR-220/F-1, dated the 4th November, 1995, for this purpose, hereby fixes per standard bag of tendu (*Diospyros melanoxylon*) leaves (1000 bundles of 70 leaves each) as set out in Column 3 of the Schedule hereto, the prices at which the Tendu leaves shall be purchased by the State Government or by any of its authorised Officer of Agent, during the year commencing on the first day of July 1995 and ending on the 30th June, 1996 from the growers of these leaves in the Units, specified respectively in Column (2) thereof, against the above price (with reference to the Units constituted under Government Notification, Revenue and Forests Department, No. MFP 2182/240911/F-1, dated the 19th November, 1983.

Schedule 5

Serial No.

Units of Forest Circle

Price per standard Bag of Tendu

Leaves

(1)

(2)

(3)

1

All Units of North Chandrapur and South Chandrapur Circle.

470

2

All Units in Bhandara District of Nagpur Circle.

460

3

All Units of Yeotmal and Amravati Circle, Units of Nagpur Circle excepting these in Bhandara district and all units of Nanded Forest Division of Aurangabad Circle.

350

4

All Units of Thane, Nashik, Pune, Dhule and Kolhapur Circle and Units of Aurangabad Circle excepting those in Nanded Forest Division.

290

Explanation- For the purpose of this Notification the words "Standard Bag" and "Standard bundle" shall have the same meaning as assigned to them in the Maharashtra Minor Forest Produce (Regulation of Trade in Tendu Leaves) Rules, 1969.

[G. N. R. & F. D. No. MFP 2196/ CR-195/F-1, dated 31st December, 1996 (M.G., Part IV-B, Page 493] - In exercise of the Powers conferred by Section 7 of the Maharashtra Minor Forest Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969), Government of Maharashtra in consultation with the Advisory Committee constituted under Government Notification, Revenue and Forests Department No. MFP-2196/CR-195/F-1, dated the 7th October, 1996, for this purpose, hereby fixes per standard bag of tendu (*Diospyros melanoxylon*) leaves (1000 bundles of 70 leaves each) as set out in Column 3 of the Schedule hereto, the prices at which the Tendu leaves shall be purchased by the State Government or by any of its authorised Officer or Agent, during the year commencing on the first day of July 1996 and ending on the 30th June, 1997 from the growers of these leaves in the Units, specified respectively in Column (2) thereof, against the above price (with reference to the Units constituted under Government Notification, Revenue and Forests Department, No. MFP 2182/240911/F-1, dated the 19th November, 1983.

Schedule 6

Serial No.

Units of Forest Circle

Price per standard Bag of Tendu

Leaves

(1)

(2)

(3)

1

All Units of North Chandrapur and South Chandrapur Circle.

490

2

All Units in Bhandara District of Nagpur Circle.

480

3

All Units of Yeotmal and Amravati Circle, Units of Nagpur Circle excepting these in Bhandara district and all units of Nanded Forest Division of Aurangabad Circle.

370

4

All Units of Thane, Nashik, Pune, Dhule and Kolhapur Circle and Units of Aurangabad Circle excepting those in Nanded Forest Division.

310

Explanation- For the purpose of this Notification the words "Standard Bag" and "Standard bundle" shall have the same meaning as assigned to them in the Maharashtra Minor Forest Produce (Regulation of Trade in Tendu Leaves) Rules, 1969.

G. N. R. & F. D. No. MFP 2198/CR-129/F-1, dated 16th January, 1999 (M.G., Part IV-B, p. 174) - In exercise of the powers conferred by section 7 of the Maharashtra Forest Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969), Government of Maharashtra in consultation with the Advisory Committee constituted under Government Notification, Revenue and Forests Department, No. MFP 2198 CR-129/F-1, dated the 15th December, 1998 for this purpose hereby fixes per standard bag of tendu (*Diospyros melanoxylon*) leaves (1000 bundles of 70 leaves each) as set out in Column 3 of the Schedule hereto, the minimum prices at which the Tendu leaves shall be purchased by the State Government or by any of its authorised Officer or Agent, during the year commencing on the first day of July 1998 and ending on the 30th June, 1999 from the growers of these leaves in the Units, specified respectively in Column (2) thereof, against the above price with reference to the Units constituted under Government Notification, Revenue and Forests Department, No. MFP 2182/240911/F-1, dated the 19th November 1983, Government Corrigendum, Revenue and Forests Department No. MFP 2192/CR-1/F-1, dated the 13th January 1992 and Government Corrigendum, Revenue and Forests Department No. MFP. 2198/CR-23/F-1, dated the 2nd April, 1998.

Schedule 7

Serial No.

Units of Forest Circle

Minimum Price per standard Bag of Tendu

Leaves

(1)

(2)

(3)

1

All Units of Bhamragad, Sironcha Allapalli and Vadsa Forests Divisions in Gadchiroli district and all units of Gadchiroli Forest Division of South Chandrapur and North Chandrapur Circle.

685

2

All Units of South Chandrapur and North Chandrapur Circle except those mentioned in Serial No. 1 above (Central Chandrapur and Chandrapur Brahmapuri forest Division) and all Units of Bhandara District of Nagpur Circle.

565

3

All Units of Yavatmal and Amravati Circle, All Units of Nagpur Circle except Bhandara district and all Units of Nanded Forest Division of Aurangabad Circle.

440

4

All Units of Pune, Dhule and Kolhapur, Nasik, Thane Circle and All Units of Aurangabad Circle except Nanded Forest Division.

410

Explanation - For the purpose of this Notification the words "Standard Bag" and "Standard Bundle" shall have the same meaning as assigned to them in the Maharashtra Minor Forest Produce (Regulation of Trade in Tendu Leaves) Rules, 1969.

G. N. R. & F. D. No. MFP-21-02/CR-216/F-1, dated 25th November, 2002 (M. G., Part IV-B, P. 1299) - In exercise of the powers conferred by section 7 of the Maharashtra Forest Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969), Government of Maharashtra in consultation with the Advisory Committee constituted under Government Notification, Revenue and Forests Department, No, MFP. 21.02/CR-216/F-1, dated 6th September 2002 for this purpose, hereby fixes per standard bag of tendu (Diospyros Melanoxylon) leaves (1000 bundles of 70 leaves each) as set out in Column 3 of the Schedule hereto, the minimum prices at which the tendu leaves shall be purchased by the State Government or by any of its Authorised Officer or Agent, during the year commencing on the first day of July 2002 and ending on the 30th June 2003 from the growers of these leaves in the Units, specified respectively in Column 2 thereof, against the above price (with reference to the Units constituted under Government Notification, Revenue and Forests Department, No. MFP 2182/240911/F-1, dated the 19th November 1983, Government Corrigendum, Revenue and Forests Department No. MFP 2192/CR-1/F-1, dated the 13th January 1992 and Government Corrigendum, Revenue and Forests Department No. MFP. 2198/CR-23/F-1, dated the 2nd April 1998.Schedule Serial No.

Units of Forest Circle

Min. Price per Standard Bag of Tendu Leaves

(1)

(2)

(3)

Rs.

1

All Units of Bhamragad, Sironcha Allapalli Forest Divisions in South Chandrapur Circle of Gadchiroli District and all units of Wadsa Gadchiroli Forest Division of North Chandrapur Circle.(Entire Gadchiroli District).

955

2

All Units of Chandrapur Brahmapuri Forest Divisions in North Chandrapur Circle,all Units of Central Chandrapur in South Chandrapur Circle and all Units of Nagpur, Yavatmal and Amravati Circles (Entire Chandrapur, Amravati, Akola, Washim, Buldhana, Yavatmal, Wardha, Bhandara and Gondia Districts).

680

3

All Units of Aurangabad, Pune, Dhule Kolhapur, Nashik and Thane Circle [All Other Districts of Maharashtra, not mentioned in (1) and (2) above].

570

Explanation.- For the purpose of this Notification the words "Standard Bag" and "Standard Bundle" shall have the same meaning as assigned them in the Maharashtra Forest Produce (Regulation of Trade in Tendu Leaves) Rules in 1969.

G. N. R. & F. D No. MFP 21-03/CR-162/F-1, dated 12th January, 2004 (M.G. Part IV-B, p. 38) - In exercise of the powers conferred by Section 7 of the Maharashtra Forest Produce (Regulation of Trade) Act, 1969 (Maharashtra LVII of 1969), Government of Maharashtra in consultation with the Advisory Committee constituted under Government Notification, Revenue and Forest Department, No. MFP 21-03 CR-162/F-1, dated the 16th October, 2003 for this purpose hereby fixes per standard bag of tendu (Diospyros melanoxylon) leaves (1000 bundles of 70 leaves each) as set out in Column 3 of the Schedule hereto, the minimum prices at which the Tendu leaves shall be purchased by the State Government or by any of its Authorised Officer or Agent, during the year commencing on the first day of July 2003 and ending on the 30th June 2004 from the growers of these leaves in the Units, specified respectively in Column (2)

thereof, against the above price with reference to the Units constituted under Government Notification, Revenue and Forests Department, No. MFP 2182/240911/F-1, dated the 19th November 1983, Government Corrigendum, Revenue and Forest Department No. MFP 2192/CR-1/F-1, dated the 13th January 1992 and Government Corrigendum, Revenue and Forests Department No. MFP. 2198/CR-23/F-1, dated the 2nd April, 1998.

Schedule 8

Serial No.

Units of Forest Circle

Min. Price Rs. per standard Bag of Tendu

Leaves

(1)

(2)

(3)

Rs.

1

All Units of Bhamragad, Sironcha Allapalli Forest Divisions in South Chandrapur Circle of Gadchiroli District and all units of Wadsa and Gadchiroli Forest Division of North Chandrapur Circle.(Entire Gadchiroli District).

955

2

All Units of Chandrapur Brahmapuri Forest Divisions in North Chandrapur Circle, all Units of Central Chandrapur in South Chandrapur Circle and all Units of Nagpur, Yavatmal and Amravati Circles (Entire Chandrapur, Amravati, Akola, Vashim, Buldhana, Yavatmal, Wardha, Bhandara and Gondia Districts).

680

3

All Units of Aurangabad, Pune, Dhule, Kolhapur, Nashik and Thane Circle [All Other Districts of Maharashtra, not mentioned in (1) and (2) above].

570

Explanation.- For the purpose of this Notification the words "Standard Bag" and "Standard Bundle" shall have the same meaning as assigned them in the Maharashtra Forest Produce (Regulation of Trade in Tendu Leaves) Rules in 1969.

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Translation